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SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

24STCV26733

CORA

MAHUKA vs KAREN RUTH BASS, MAYOR OF LOS ANGELES, CITY OF LOS ANGELES AND LOS ANGELES COUNTY TO INCLUDE LONG BEACH, et al.

September

28, 2026

8:30

AM

NATURE OF PROCEEDINGS:

DEMURRER TO THIRD AMENDED COMPLAINT BY DEFENDANT KAREN RUTH BASS.

RULING:

The Demurrer is overruled.

Twenty
days to answer.

Plaintiff
to give notice.

I.
BACKGROUND

On October 14, 2024, CORA
MAHUKA (Plaintiff), a self-represented litigant, filed a Complaint against
KAREN RUTH BASS, MAYOR OF LOS ANGELES; CITY OF LOS ANGELES; and LOS ANGELES
COUNTY TO INCLUDE LONG BEACH (Defendants).

On July 14, 2026,
Plaintiff filed the Third Amended Complaint (TAC), listing the following Causes
of Action:

1.
VIOLATION OF TITLE II OF THE AMERICANS WITH DISABILITIES ACT, 42 U.S.C. § 12132

2.
VIOLATION OF CIVIL RIGHTS UNDER 42 U.S.C. § 1983.

Plaintiff alleges that,
as a disabled person and a prior rape victim, she experienced retaliation,
Civil Rights violations, and violations of the Americans with Disabilities Act (ADA),
while participating in the Mayor's INSIDE SAFE PROGRAM, improperly providing unworkable
housing assistance involving unsafe and uninhabitable housing-related services,
caused by Defendants, "to the extent they operated, supervised, funded,
controlled, staffed, or administered the relevant programs, services, and
facilities, maintained policies, customs, practices, failures of training,
failures of supervision, and failures of safeguards...." (TAC, ¶ 99.)

On August 13, 2026, KAREN
RUTH BASS (Defendant) filed the Demurrer to the TAC, on some grounds raised in
prior demurrers, including that Defendant is not a suable public entity, and disability

discrimination against Plaintiff individually is not alleged.

Plaintiff filed an
Opposition advocating that the most current pleading is sufficiently improved
about the bases for naming Defendant.

II.

LEGAL STANDARD

Demurrers are to be
sustained where a pleading fails to plead adequately any essential element of
the cause of action. (*Cantu v. Resolution*
Trust Corp. (1992) 4 Cal.App.4th 857, 879-880.)

In ruling upon demurrers,
courts treat as being true “not only the complaint’s material factual
allegations, but also facts that may be implied or inferred from those
expressly alleged.” (*Poseidon*
Development, Inc. v. Woodland Lane Estates, LLC (2007) 152 Cal.App.4th
1106, 1111-1112. *Accord, Schauer v.*
Mandarin Gems of Cal., Inc. (2005) 125 Cal.App.4th 949, 953.)

Demurrers do not lie as
to only parts of causes
of action, where some valid claim is alleged. (E.g., *Poizner v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119 [“A
demurrer must dispose of an entire cause of action to be sustained.”]; *Kong v. City of Hawaiian Gardens Redev.*
Agency (2003) 108 Cal.App.4th 1028, 1046.)

“In considering a
demurrer, the court is not required to ignore controlling law merely because
the plaintiff does not rely on it.” (*Dey*
v. Continental Central Credit (2008) 170 Cal.App.4th 721, 730.)

In the Demurrer and Reply,
Defendant heavily relies upon cited federal appellate and trial court rulings
in addressing federal and state statutory claims, and not constitutional.
(E.g., *Demurrer*, pp. 8-9). However, California courts are not free to depart
from California Supreme Court precedent by applying different federal law. (*Fujifilm Corp. v. Yang* (2014) 223
Cal.App.4th 326, 333.) “The general rule is that when a federal cause of action
is pursued in a state court, state law is controlling with respect to matters

of practice and procedure, in the absence of any contrary provision in the federal statute.” (Gervase v. Superior Court (1995) 31 Cal.App.4th 1218, 1229, fn.6.) California appellate courts are not bound to follow decisions of lower federal courts. (People v. Superior Court (2002) 103 Cal.App.4th 409, 431.) Further, California courts are not bound by decisions of the United States Supreme Court that are based upon federal statutory or state law, as distinguished from federal constitutional law. (Adolph v. Uber Techs., Inc. (2023) 14 Cal.5th 1104, 1119 [“we are not bound by the high court’s interpretation of California law.”]; Irwin v. Pacific Southwest Airlines (1982) 133 Cal.App.3d 709, 717; East Quincy Services Dist. v. General Accident Ins. Co. (2001) 88 Cal.App.4th 239, 246, fn. 31; Gates v. Discovery Communications, Inc. (2004) 34 Cal.4th 679, 692 [“On matters of federal constitutional law . . . we are bound by the decisions of the United States Supreme Court.”].)

III.

ANALYSIS

Defendant primarily argues
the following:

.

Defendant could not be liable
individually, not being a public entity.

.

The TAC alleges other individuals’
experiencing of the same conditions, indicating no discrimination targeted against
Plaintiff, and such systemic failures preclude any claim that Plaintiff was
discriminated against, according to Payan v. Los Angeles Cmty. Coll. Dist.,
11 F.4th 729, 737 (9th Cir. 2021).

Under 42 U.S.C. section
12132, the elements needing addressed, for an Americans with Disabilities (ADA)
Cause of Action, are the following:

Plaintiff

is an individual who has a disability;

is

qualified to participate in or receive public entity benefits, services, programs, or activities;

was

excluded from participation, denied, or otherwise discriminated against by public entity; and

exclusion,

denial, or discrimination, was by reason of plaintiff's disability.

(In re M.S. (2009)

174 Cal.App.4th 1241, 1252. See also Gregory v. Cott (2014) 59 Cal.4th 996, 1014, fn. 14 [under Title II of the Americans with Disabilities Act (42 U.S.C. § 12132), " '[s]tates are required to provide community-based treatment for persons with mental disabilities when the State's treatment professionals determine that such placement is appropriate, the affected persons do not oppose such treatment, and the placement can be reasonably accommodated, taking into account the resources available to the State and the needs of others with mental disabilities.' "].)

Under Title VII,

"individuals can be sued in their official or representative capacity, they may not be sued in their individual capacity and have no personal liability" (Reno v. Baird (1998) 18 Cal.4th 640, 648. See also Henrietta D. v. Bloomberg (2d Cir. 2003) 331 F.3d 261, 291 ["a state official sued in his or her official capacity is a 'public entity' subject to liability under the ADA"]; Alston v. D.C. (D.D.C. 2008) 561 F. Supp. 2d 29, 37 ["Title II of the ADA, by its terms, only prohibits discrimination by 'public entities.' 42 U.S.C. § 12132. The statute is clear that individuals are not public entities. Id. at § 12131(1). Therefore, individuals, acting in their personal capacities, cannot violate Title II."].)

Next, the elements that Plaintiff needs to address, for the Section 1983 Claim, are these:

The conduct was committed by a person acting under color of state law; and

it deprived a person of rights, privileges, or immunities secured by the Constitution or other law of the

United States.

(Tichinin v. City of Morgan Hill (2009) 177

Cal.App.4th 1049, 1062; Vergos v. McNeal

(2007) 146 Cal.App.4th 1387, 1402. See also

Holland v. Morse Diesel Int'l, Inc. (2001) 86 Cal.App.4th 1443, 1449–50 [“42

United States Code section 1981(a) ...provides: ‘All persons within the

jurisdiction of the United States shall have the same right in every State and

Territory to make and enforce contracts, to sue, be parties, give evidence, and

to the full and equal benefit of all laws and proceedings for the security of

persons and property as is enjoyed by white citizens, and shall be subject to

like punishment, pains, penalties, taxes, licenses, and exactions of every

kind, and to no other.”]; Galland

v. City of Clovis (2001) 24 Cal.4th 1003, 1038 [“Only those government

actions that amount to a deliberate flouting of the law qualify for relief

under section 1983 ..., not ‘inadvertent errors, honest mistakes, agency

confusion, [or] negligence.”]; Jones

& Matson v. Hall (2007) 155 Cal.App.4th 1596, 1605 [“causal connection

can be established by direct personal participation in the deprivation or by

setting in motion a series of acts by others which the actor knows or

reasonably should know would cause others to inflict the constitutional

injury.”]; City and County of San

Francisco v. Ballard (2006) 136 Cal.App.4th 381, 406-407 [governmental

liability under section 1983 is confined to deliberate actions done pursuant to

official municipal policies causing deprivations of federally protected rights

of life, liberty or property]; Harman v.

City & Cnty. of San Francisco (2006) 136 Cal.App.4th 1279, 1296

[according to the Monell decision addressing 42 USC section 1983: “‘Congress

did not intend municipalities to be held liable unless action pursuant to

official municipal policy of some nature caused a constitutional tort.”]; Dwight R. v. Christy B. (2013) 212

Cal.App.4th 697, 714 [“Section 1983 applies to persons acting ‘under color of’

state law,... and normally does not apply to private actors,... ‘A private

individual may be liable under section 1983 if she conspired or entered joint

action with a state actor....”]; Mackey v.

Bd. of Trustees of California State Univ. (2019) 31 Cal.App.5th 640, 655

[persons, but not arms of the state, may be sued under 42 USC section 1983]; Grassilli v. Barr (2006) 142 Cal.App.4th

1260, 1279–80 [superiors’ vicarious

liability under section 1983 requires proving (1) superior had actual or

constructive knowledge of the wrongful conduct; (2) response was so inadequate

to show deliberate indifference to, or tacit authorization of, the offensive

practices; and (3) an affirmative causal link between superior's inaction and injuries]; Breneric Assocs. v. City of Del Mar (1998) 69 Cal.App.4th 166, 180 ["A plaintiff seeking recovery under section 1983 must plead more than constitutional "buzzwords" to survive demurrer.... The plaintiff must allege specific and nonconclusory facts showing the defendant's acts deprived him of a right, privilege or immunity secured by the federal Constitution or federal laws."]; Bach v. County of Butte (1983) 147 Cal.App.3d 554, 564 ["Some particularized facts demonstrating a constitutional deprivation are needed to sustain a cause of action under the Civil Rights Act."].)

First, Plaintiff's claims are based upon law against discrimination against identified disabilities. (E.g., TAC, ¶¶ 72-73, 87.)

Also,

the TAC, at paragraph 6, sufficiently states: "Defendant Karen Ruth Bass is sued herein strictly in her Official Capacity, for her factual participation , in relation to the claimed elements, as the Mayor of the City of Los Angeles, serving as the chief executive standing in for the public entity that initiated, authorized, promoted, and oversaw the Inside Safe Program, under which Plaintiff was placed into and moved through the housing and support chain described in this Complaint. Plaintiff does not assert individual or personal capacity claims against Defendant Bass under the ADA or Section 1983." And paragraphs 17-through-22 are similar, while adding factual detail such as assigned worker identifications.

Furthermore,

Plaintiff's TAC alleges conduct or policies that Defendant as an official participated in, including an ongoing policy inferred by failures designed to deny constitutional or other rights associated with disability services. (E.g., TAC, ¶¶ 90, 98-101.) Similarly, Plaintiff alleges that Defendants denied public entity benefits, services, programs, or activities, repetitively, from about June 2023 to April, 2025, which reasonably infers a government policy to do so. (E.g., *ibid.*, ¶¶ 23-71.)

While

the TAC alleges systemic failures (E.g., ¶ 100), it also includes at least some issues that Plaintiff experienced uniquely as an individual. (E.g., *id.*, ¶ 3 ("Instead of receiving safe and appropriate support, Plaintiff was subjected to misconduct, misuse of confidential information, retaliation, unsafe and unstable housing...."), 28-31 (alleging one-on-one assaults upon Plaintiff personally).)

IV.

CONCLUSION

Accordingly, the Court overrules
the Demurrer to the TAC, and allows 20 days to serve and file an Answer.